

SPECIFIC INSTRUCTIONS – FORM 1

Form 1

This form of summons is to be used only in those actions described in 28 U.S.C. § 1581(a).

The summons must be filed together with a \$175 filing fee, a completed Information Statement (Form 5), and a completed Disclosure of Corporate Affiliation and Financial Interest (Form 13).

The summons form (copies of which may be obtained from the office of the clerk) consists of three pages. The first page is to be completed with the required information pertaining to the denied protest. The second page is to be completed with the required information pertaining to the administrative decision contested in the action. The third page is to be completed with a schedule of protests, listed in numerical order, when more than one denied protest is included in the action.

On page one, practitioners should list the CBP Center assigned to the protest(s), as indicated in the Automated Commercial Environment (ACE) protest record(s). If the Center is unknown, practitioners may list the appropriate port(s) of entry only. This information helps the court facilitate the transmittal of the summons to the correct Center(s) or port(s) of entry. In most instances, only one Center will be assigned to the protests listed on the Summons, as they cover the same merchandise and importer. However, should the protests be assigned to more than one Center, all appropriate Centers should be listed. The Centers are currently as follows: Pharmaceuticals, Health & Chemicals; Agriculture & Prepared Products; Automotive & Aerospace; Apparel, Footwear & Textiles; Base Metals; Petroleum, Natural Gas & Minerals; Electronics; Consumer Products & Mass Merchandising; Industrial & Manufacturing Materials; and Machinery.

(As amended July 23, 1993, eff. July 23, 1993; Nov. 29, 2005, eff. Jan. 1, 2006; Mar. 19, 2013, eff. May 1, 2013; June 22, 2021, eff. July 26, 2021.)

SPECIFIC INSTRUCTIONS – FORM 1A

Form 1A

A Notice of Lawsuit and Request for Waiver of Service of Summons which, as previously prescribed by Rule 4(c), shall be addressed directly to a defendant and sent by first-class mail or other reliable means. The defendant shall be allowed a reasonable period of time to return the waiver (Form 1B).

Plaintiff shall provide the defendant with a stamped and addressed return envelope. Plaintiff also shall provide the defendant with a copy of the waiver for defendant's records.

Upon receipt of the signed waiver, plaintiff shall file the waiver with the court.

If the waiver is timely returned by the defendant, that defendant, if located within any judicial district in the United States, is not required to serve an answer until 60 days after the date on which the request for the waiver was sent.

(As added Oct. 5, 1994, eff. Jan. 1, 1995; and amended Oct. 23, 2025, eff. Dec. 1, 2025.)

SPECIFIC INSTRUCTIONS – FORM 1B

Form 1B

A Waiver of Service of Summons which, as prescribed in Rule 4(c), shall be returned to a plaintiff who has requested a defendant to waive service.

If a defendant, after being notified on an action and asked to waive service fails to do so, that defendant will be required to bear the cost of service unless good cause can be shown for its failure to sign and return the waiver.

If the waiver is timely returned by the defendant, that defendant, if located within any judicial district of the United States, is not required to serve an answer until 60 days after the date on which the request for the waiver was sent.

(As added Oct. 5, 1994, eff. Jan. 1, 1995; and amended Oct. 23, 2025, eff. Dec. 1, 2025.)

SPECIFIC INSTRUCTIONS – FORM 2

Form 2

This form of summons is to be used only in those actions described in 28 U.S.C. § 1581(b).

The summons must be filed together with a \$400 filing fee, a completed Information Statement (Form 5), and a completed Disclosure of Corporate Affiliation and Financial Interest (Form 13).

The summons form (copies of which may be obtained from the office of the clerk) consists of two pages. The first page is to be completed with the required information pertaining to the entry involved in the action. The second page is to be completed with the required information pertaining to the administrative decisions contested in the action.

When one action includes entries involving one consignee and one port of entry, the original and five copies of the summons must be filed. When the action includes entries involving more than one consignee or more than one port of entry, an additional copy of the summons must be filed at the same time for each such additional consignee and each such additional port of entry.

(As amended July 23, 1993, eff. July 23, 1993; Dec. 18, 2001, eff. Apr. 1, 2002; Nov. 29, 2005, eff. Jan. 1, 2006; Mar. 21, 2006, eff. Apr. 10, 2006; Mar. 19, 2013, eff. May 1, 2013.)

SPECIFIC INSTRUCTIONS – FORM 3

Form 3

This form of summons is to be used only in those actions described in 28 U.S.C. § 1581(c). It is to be used both: (1) when the action is commenced by filing a summons only (i.e., to contest a determination listed in section 516A(a)(2) or (3) of the Tariff Act of 1930; and (2) when the action is commenced by filing concurrently a summons and a complaint (i.e., to contest a determination listed in section 516A(a)(1) or section 517(g) of the Tariff Act of 1930).

The summons must be filed with a \$400 filing fee, a completed Information Statement (Form 5), and a completed Disclosure of Corporate Affiliation and Financial Interest (Form 13).

When the clerk of the court is required to make service of the summons (i.e., those actions commenced by filing a summons only), the original and one copy of the summons must be filed with an additional copy for each defendant to be served; and the back of the summons must list the complete name and mailing address of each defendant to be served.

When the plaintiff is required to make service of the summons (i.e., those actions commenced by filing concurrently a summons and a complaint), the original and one copy of the summons must be filed with proof of service. Before making service of the summons, plaintiff must obtain a court number from the office of the clerk and endorse the number on the summons. For this purpose, a court number may be assigned to the action and obtained by telephone request, but in no event shall a court number be obtained from the office of the clerk more than 24 hours prior to the service of the summons.

(As amended July 21, 1986, eff. Oct. 1, 1986; July 23, 1993, eff. July 23, 1993; Aug. 29, 2000, eff. Jan. 1, 2001; Nov. 29, 2005, eff. Jan. 1, 2006; Mar. 21, 2006, eff. Apr. 10, 2006; Mar. 19, 2013, eff. May 1, 2013; Sept. 18, 2018, eff. Oct. 15, 2018.)

SPECIFIC INSTRUCTIONS – FORM 4

Form 4

This form of summons is to be used in all actions other than those actions in which the form of summons to be used is Form 1, 2, or 3.

The original and one copy of the summons must be filed with proof of service, a \$400 filing fee, except that a \$35 filing fee shall be paid when the action is one described in 28 U.S.C. § 1581(d)(1), a completed Information Statement (Form 5), and a completed Disclosure of Corporate Affiliation and Financial Interest (Form 13). Before making service of the summons, plaintiff must obtain a court number from the office of the clerk and endorse the number on the summons. For this purpose, a court number may be assigned to the action and obtained by telephone request, but in no event shall a court number be obtained from the office of the clerk more than 24 hours prior to the service of the summons.

(As amended July 23, 1993, eff. July 23, 1993; Dec. 18, 2001, eff. Apr. 1, 2002; Nov. 29, 2005, eff. Jan. 1, 2006; Mar. 21, 2006, eff. Apr. 10, 2006; Mar. 19, 2013, eff. May 1, 2013.)

SPECIFIC INSTRUCTIONS – FORM 5

Form 5

The Information Statement, which must be filed when an action is commenced, is a form available from the office of the clerk. The original and a sufficient number of copies for service (when service is to be made by the office of the clerk) of the completed Information Statement must be filed.

(As amended Aug. 29, 2000, eff. Jan. 1, 2001; Nov. 29, 2005, eff. Jan. 1, 2006.)

SPECIFIC INSTRUCTIONS – FORM 6

Form 6

A Request for Trial must be filed after service as prescribed in Rule 40(a). The request must be substantially in the form set forth in Form 6.

After receipt of a Request for Trial and any opposition to the request, the court will designate the date and place for trial. As prescribed in Rule 77(c), the judge to whom the action is assigned will designate the date of the trial to be held at, or continued to, New York City; and the chief judge will designate the place and date of the trial to be held at, or continued to, any place other than New York City.

To complete the fillable version of Form 6, follow the steps below:

Caption:

- 1) Enter the names of the plaintiff and defendant in the appropriate free text box
- 2) Select “Court No.” or “Consolidated Court No.” from the drop-down box
- 3) Enter the Court No. or Consolidated Court No. in the free text box

Body:

- 1) Select “plaintiff” or defendant”
- 2) Enter the requested trial date(s)
- 3) Enter the requested place of trial
- 4) Select “Plaintiff” or “Defendant”
- 5) Select “party” or “parties”

Date and Contact Information:

- 1) Enter the filing date in the free text box
- 2) Enter the attorney’s contact information in the appropriate fields

(As amended July 23, 1993, eff. July 23, 1993; June 5, 2015, eff. July 1, 2015.)

SPECIFIC INSTRUCTIONS – FORM 7

Form 7

In an action commenced under 28 U.S.C. § 1581(a), 1581(b) or 1582, a Notice of Dismissal which, as prescribed by Rule 41(a)(1)(A)(i), may be filed by plaintiff at any time before service of an answer or motion for summary judgment, must be substantially in the form set forth in Form 7, and must include for each action noticed for dismissal: the court number; and the name of the plaintiff. In addition, in an action commenced under section 1581(a) or (b), the plaintiff is to include the protest number and the entry number, if applicable. In an action commenced under section 1582, the plaintiff also shall include the claim number, if applicable.

A Notice of Dismissal may include, on an attached schedule, more than one action.

(As amended July 23, 1993, eff. July 23, 1993; Dec. 18, 2001, eff. Apr. 1, 2002; Aug. 2, 2010, eff. Sept. 1, 2010.)

SPECIFIC INSTRUCTIONS – FORM 7A

Form 7A

In an action commenced other than under 28 U.S.C. § 1581(a), 1581(b) or 1582, a Notice of Dismissal which, as prescribed by Rule 41(a)(1)(A)(i), may be filed by plaintiff at any time before service of an answer or motion for summary judgment, must be substantially in the form set forth in Form 7A, and must include for each action noticed for dismissal the court number and the name of the plaintiff.

(As added Dec. 18, 2001, eff. Apr. 1, 2002; and amended Aug. 2, 2010, eff. Sept. 1, 2010.)

SPECIFIC INSTRUCTIONS – FORM 8

Form 8

In an action commenced under 28 U.S.C. § 1581(a), 1581(b) or 1582, a Stipulation of Dismissal which, as prescribed by Rule 41(a)(1)(A)(ii), may be filed by plaintiff, must be substantially in the form set forth in Form 8, and must include for each action stipulated for dismissal: the court number; and the name of the plaintiff. In addition, in an action commenced under section 1581(a) or (b), the plaintiff is to include the protest number and the entry number, if applicable. In an action commenced under section 1582, the plaintiff also shall include the claim number, if applicable.

A Stipulation of Dismissal may include, on an attached schedule, more than one action.

(As amended July 23, 1993, eff. July 23, 1993; Dec. 18, 2001, eff. Apr. 1, 2002; Aug. 2, 2010, eff. Sept. 1, 2010.)

SPECIFIC INSTRUCTIONS – FORM 8A

Form 8A

In an action commenced other than under 28 U.S.C. § 1581(a), 1581(b) or 1582, a Stipulation of Dismissal which, as prescribed by Rule 41(a)(1)(A)(ii), may be filed by plaintiff, must be substantially in the form set forth in Form 8A, and must include for each action stipulated for dismissal the court number and the name of the plaintiff.

(As added Dec. 18, 2001, eff. Apr. 1, 2002; and amended Aug. 2, 2010, eff. Sept. 1, 2010.)

SPECIFIC INSTRUCTIONS – FORM 9

Form 9

As prescribed in Rule 58.1, an action described in 28 U.S.C. § 1581 (a) or (b) may be stipulated for judgment on an agreed statement of facts.

The proposed stipulated judgment on agreed statement of facts shall be substantially in the form set forth in Form 9, with appropriate additions and deletions if the action does not involve valuation or classification. The proposed stipulated judgment on agreed statement of facts shall be filled out in accordance with the Endnotes found following Form 9.

(As added July 23, 1993, eff. July 23, 1993; and amended Mar. 25, 1998, eff. July 1, 1998)

SPECIFIC INSTRUCTIONS – FORM 10

Form 10

An Application for Admission to Practice which, as prescribed by Rule 74(b)(1), must be completed and filed with the clerk of the court. The application must be on Form 10, which can be obtained from the Office of the Clerk of the Court. The application must include the name, the residential and office address of the applicant, and the name and address of the applicant's employer, among other essential contact information. Additionally, the application must include information pertaining to the applicant's bar admissions, good standing, and suspension and disbarment proceedings, if any.

An application may be made by (1) written motion or (2) oral motion. When the application is made upon written motion, it must be accompanied by a certificate of a judge or a clerk of any of the courts specified in Rule 74(a). The certificate must have been issued no earlier than 90 days prior to the date of the application and must state that the applicant is a member in good standing of the bar of that court.

When the application is made upon oral motion, the applicant must file the statement of the sponsoring attorney, who is a member of the bar of this court or of the bar of the Supreme Court of the United States. In addition, if the sponsoring attorney has known the applicant for less than one year or has not worked in the same law firm, government agency, or in a company with me for more than 6 months, the applicant must include a certificate of a judge or a clerk of any of the courts specified in Rule 74(a), which was issued no earlier than 90 days prior to the date of the application and which must state that the applicant is a member in good standing of the bar of that court. When the application is made by oral motion, the attorney is not admitted to the Court until the oath specified in Rule 74(a) is administered. The applicant is required to sign a declaration, under penalties of perjury, that the statements made by the applicant are true and correct.

(As amended July 23, 1993, eff. July 23, 1993; Mar. 25, 1998, eff. July 1, 1998; Nov. 29, 2005, eff. Jan. 1, 2006; Nov. 28, 2006, eff. Jan. 1, 2007; Nov. 25, 2008, eff. Jan. 1, 2009; Mar. 18, 2026, eff. Mar. 30, 2026.)

Form 11

A Notice of Appearance, as prescribed by Rule 75(b)(2), must be filed and served by an attorney authorized to appear in the action. The attorney must file and serve a notice for each action. The notice must be filed and served in all instances except those specified in Rule 75(b)(1). The notice should be substantially in the form set forth in Form 11.

An appearance may be made by an individual attorney or by a firm of attorneys. If an appearance is made by a firm of attorneys, the individual attorney responsible for the litigation must be designated. In addition, private attorneys and government attorneys whose agency is represented by the Department of Justice may appear as “of counsel.” The notice should include the name of the attorney, the attorney’s e-mail address, and the name, address and telephone number of the firm.

Whenever there is any change in the name of an attorney of record or in the attorney’s address, telephone number, or e-mail address, a new notice of appearance for each action must be promptly filed and served on the other parties and filed with the court. The notice should be substantially in the form as set forth in Form 11.

To complete the fillable version of Form 11, follow the steps below:

Caption:

- 1) Enter the names of the plaintiff and defendant in the appropriate free text box
- 2) Select “Court No.” or “Consolidated Court No.” from the drop-down box
- 3) Enter the Court No. or Consolidated Court No. in the free text box
- 4) If appropriate, select “and Attached Schedule” from the drop-down box

Body:

- 1) Select “attorney” or “of counsel” from the drop-down box.
- 2) Select “plaintiff”, “defendant”, “plaintiff-intervenor”, “defendant-intervenor” or “amicus” from the drop-down box
- 3) Enter the name of the party in the free text box
- 4) If appropriate, check the box for “and for the parties indicated in the actions listed on the attached schedule”
- 5) If appropriate, check the box for “The individual attorney in the undersigned firm, corporate law department, or the Government, who is responsible for the litigation, is” and enter the name of the attorney in the free text box

Date and Contact Information:

- 1) Enter the filing date in the free text box
- 2) Enter the attorney’s contact information in the appropriate fields

Schedule, if any:

- 1) Enter the court numbers of all appropriate cases in the free text box
- 2) Enter the case name for those cases in the free text box
- 3) Enter the name of the party or parties represented in the free text box

(As added July 23, 1993, eff. July 23, 1993; and amended, Dec. 7, 2010, eff. Jan. 1, 2011; Dec. 4, 2012, eff. Jan. 1, 2013; June 5, 2015, eff. July 1, 2015.)

SPECIFIC INSTRUCTIONS – FORM 12

Form 12

A Notice of Substitution of Attorney, which, as prescribed by Rule 75(c), must be served by the party desiring to substitute an attorney. The service must be to the prior attorney of record and to all other parties. The notice shall be substantially in the form set forth in Form 12.

The notice should include the name of the substituted attorney, the prior attorney of record, and shall be signed by the substituting party. The notice also shall include a notice of appearance by the substituted attorney.

To complete the fillable version of Form 12, follow the steps below:

Caption:

- 1) Enter the names of the plaintiff and defendant in the appropriate free text box
- 2) Select “Court No.” or “Consolidated Court No.” from the drop-down box
- 3) Enter the Court No. or Consolidated Court No. in the free text box
- 4) If appropriate, select “and Attached Schedule” from the drop-down box

Body:

- 1) Enter new attorney, undersigned firm or corporate law department
- 2) Select “plaintiff”, “defendant”, “plaintiff-intervenor”, “defendant-intervenor” or “amicus” from the drop-down box
- 3) Enter former attorney, firm or corporate law department
- 4) Enter date
- 5) Enter name of party
- 6) Select “Plaintiff”, “Defendant”, “Plaintiff-Intervenor”, “Defendant-Intervenor” or “Amicus” from the drop-down box
- 7) Signature of party
- 8) Enter name of party
- 9) Select “plaintiff”, “defendant”, “plaintiff-intervenor”, “defendant-intervenor” or “amicus” from the drop-down box
- 10) Select “her” or “him” from the drop-down box
- 11) If appropriate, check the box for “The individual attorney in the undersigned firm, corporate law department, or the Government, who is responsible for the litigation, is” and enter the name of the attorney in the free text box

Date and Contact Information:

- 1) Enter the filing date in the free text box
- 2) Enter the attorney’s contact information in the appropriate fields

(As added July 23, 1993, eff. July 23, 1993; and amended June 5, 2015, eff. July 1, 2015.)

Form 13

DISCLOSURE OF CORPORATE AFFILIATIONS AND FINANCIAL INTEREST*

1. When a corporation is a party to any action, the attorney for the party shall notify the clerk of the court in writing of the identity of the entity's parent corporation(s), all publicly- owned companies owned by the party, any publicly-held company that has a 10% or greater ownership interest in the entity, and any publicly-owned affiliate of the entity and the relationship between the party and each identified company.
2. The attorney for the party on whose behalf the form is filed shall, in addition to the information required in paragraph 1, notify the clerk of the court in writing of the (i) identity of the real party in interest and (ii) in an action described in 28 U.S.C. § 1581 (a) or (b), the identity of the ultimate consignee if different from the named party.
3. When a trade association is a party to an action, the attorney for the trade association shall notify the clerk of the court in writing of the identity of each publicly-owned member of the trade association.
4. The notification required of a corporate party or trade association also shall be made by the attorney for any corporation or trade association seeking to intervene, or appear as *amicus curiae*, in any action.
5. The required notification shall be made on a Disclosure Statement Form 13 when the first pleading or other paper is filed by a party, or when a motion to intervene or appear as *amicus curiae* is filed.
6. In accordance with Rule 3(i), if any the information required changes after the form is filed, and before a final judgment is issued, the attorney for the party or *amicus curiae* must file an amended form within seven (7) days of the change(s).
7. When a corporation is a party to any action and the parent corporation(s) is not publicly-known or disclosable, the attorney for the party may include the reference to the parent corporation(s) on a separate page to be submitted confidentially with the Court.
8. "Third-party litigation funding" refers to an arrangement where a non-party (including, but not limited to, a foreign government, foreign government organization, or private entity funded or controlled, in whole or in part, by a foreign government or foreign government organization) pays some or all of a party's attorney's fees, costs, or expenses specific to the matter for which this form is submitted, whether directly or through an intermediary non-party. The term does not include funding in the nature of contingency-fee arrangements,

SPECIFIC INSTRUCTIONS - FORM 13

insurance, or ordinary personal and bank loans. The identity of a third-party litigation funder that is a member of a trade association on whose behalf this Form is submitted must be disclosed only if it is a publicly traded company.

*See generally: 28 U.S.C. § 455.

(As added July 23, 1993, eff. July 23, 1993; and amended Dec. 9, 2025; eff. Jan. 5, 2026.)

SPECIFIC INSTRUCTIONS – FORM 14

Form 14

After final judgment has been entered in an action, and any further appeals have been finally resolved, the parties must jointly notify the Clerk of the Court so that all CM/ECF access to confidential information and/or business proprietary information can be terminated. This notice should be filed within 28 days of entry of final judgment, including any judgment resulting from subsequent appeals of the court's decisions. The notice should be substantially in the form set out in Form 14.

(As added Dec. 4, 2012, eff. Jan. 1, 2013.)

SPECIFIC INSTRUCTIONS – FORM 15

Form 15

An Application for Attorney's Fees and Other Expenses Pursuant to the Equal Access to Justice Act, 28 U.S.C. § 2412(d) and Rule 54.1, must be filed within 30 days after the date of final judgment, as defined in 28 U.S.C. § 2412(d)(2)(G).

The Application for Attorney's Fees and Expenses shall be substantially in the form set forth in Form 15. As prescribed by Rule 54.1, the application shall contain a citation to the authority which authorizes an award. The application shall indicate the manner in which the prerequisites for an award have been fulfilled. Each application shall also contain a statement, under oath, which specifies (1) the nature of each service rendered; (2) the amount of time expended in rendering each type of service; and (3) the customary charge for each type of service rendered.

(As added July 23, 1993, eff. July 23, 1993; and amended Sept. 30, 2003, eff. Jan. 1, 2004; July 24, 2012, eff. Sept. 3, 2012.)

SPECIFIC INSTRUCTIONS – FORMS 16 and 16-1

Forms 16 and 16-1

An Order of Deposit and Investment directing the clerk to deposit with the Treasurer of the United States in the name and to the credit of this Court pursuant to 28 U.S.C. § 2041 through depositories designated by the Treasury to accept such deposit on its behalf, and in accordance with Administrative Order No. 17-01.

As prescribed by Rule 67.1, the proposed order must be filed by delivery or by certified mail, return receipt requested, which the clerk or financial deputy who will inspect the proposed order for proper form and content prior to signature by the judge for whom the proposed order was prepared. The proposed order shall be substantially in the form set forth in Form 16 or 16-1.

(As added July 23, 1993, eff. July 23, 1993; and amended Sept. 30, 2003, eff. Jan. 1, 2004; March 21, 2017, eff. April 3, 2017.)

SPECIFIC INSTRUCTIONS – FORM 17

Form 17

As provided in Rule 73.2(c), the filing of a properly executed Business Proprietary Information Certification with the court entitles an attorney representing a party in an action brought pursuant to 28 U.S.C. § 1581(c), except an action described in section 517 of the Tariff Act of 1930, to have access to business proprietary information in the administrative record. Further, as also provided in Rule 73.2(c), the filing of a properly executed Business Proprietary Information Certification (including the required additional certifications as detailed in Form 17) entitles a non-attorney consultant to have access to business proprietary information in such an action. The Business Proprietary Information Certification shall be substantially in the form set forth in Form 17. Assuming that the properly executed Certification is timely filed, obtaining the consent of the other parties is not necessary for individuals who were subject to the administrative protective order in the underlying proceeding. Form 17 and the provisions referred to in the form are designed specifically for use in an action brought pursuant to 28 U.S.C. § 1581(c), except an action described in section 517 of the Tariff Act of 1930, and are not intended for use in other actions.

(As added Jan. 25, 2000, eff. May 1, 2000; and amended Sept. 30, 2003, eff. Jan. 1, 2004; Sept. 18, 2018, eff. Oct. 15, 2018.)

SPECIFIC INSTRUCTIONS – FORM 18

Form 18

As provided in Rule 73.2(c), in an action brought pursuant to 28 U.S.C. § 1581(c) in which a party has access to business proprietary information, a Notification of Termination of Access to Business Proprietary Information Pursuant to Rule 73.2(c) is to be utilized to inform the court and the other parties of the attorneys and consultants whose access to business proprietary information has been terminated. As also provided in Rule 73.2(c), the removal of parties from access to business proprietary information is, to the extent practicable, to be a matter of notice. Use of a standard form is intended to facilitate that process and further ease the burden on any parties who are subject to the terms of Rule 73.2(c) and the Appendix on Access to Business Proprietary Information Pursuant to Rule 73.2(c). The Notification of Termination of Access to Business Proprietary Information Pursuant to Rule 73.2(c) shall be substantially in the form set forth in Form 18.

(As added Jan. 25, 2000, eff. May 1, 2000; and amended Sept. 30, 2003, eff. Jan. 1, 2004.)

SPECIFIC INSTRUCTIONS – FORM 18A

Form 18A

Form 18A is intended to provide a means for notice of termination of access to business proprietary information through CM/ECF for a government attorney in an action brought pursuant to 28 U.S.C. § 1581(c), except an action described in section 517 of the Tariff Act of 1930. A government attorney who is no longer participating in an action in which he/she previously entered an appearance may use this form to notify the court and other parties that he/she should no longer have electronic access to, or be served with, business proprietary information in the listed cases. The form may be filed by the attorney whose access to business proprietary information is to be terminated, or by another government attorney who has entered an appearance.

(As added Dec. 4, 2012, eff. Jan. 1, 2013; and amended Sept. 18, 2018, eff. Oct. 15, 2018.)

SPECIFIC INSTRUCTIONS – FORM 19

Form 19

Rule 26(f) requires the parties, unless exempted from initial disclosure under Rule 26(a)(1)(B) or when the court orders otherwise, to confer “as soon as practicable after the filing of a complaint, and in any event at least 21 days before a scheduling conference is held or a scheduling order is due under Rule 16(b)..., and submit[t] to the court within 14 days after the conference a written report....” Form 19 illustrates the type of report the parties are expected to submit to the court, and it can be used as a checklist of items to be discussed at the conference.

To complete the fillable version of Form 19, follow the steps below:

Caption:

- 1) Enter the names of the plaintiff and defendant in the appropriate free text box
- 2) Select “Court No.” or “Consolidated Court No.” from the drop-down box
- 3) Enter the Court No. or Consolidated Court No. in the free text box
- 4) If appropriate, select “and Attached Schedule” from the drop-down box

Body:

- 1) Section 1: Enter date of Rule 26(f) conference and method of conferring
- 2) Section 2: Select “will complete by” or “have completed” from the drop-down box and if appropriate, enter the date when initial disclosures will be completed
- 3) Section 3 and 4: Enter the appropriate information in the provided fields

Date:

- 1) Date: Enter the filing date

(As added Sept. 30, 2003, eff. Jan. 1, 2004; and amended June 5, 2015, eff. July 1, 2015.)

SPECIFIC INSTRUCTIONS – FORM 23

Form 23

As provided in Rule 80(h), Form 23 is intended to be used when a party submits a physical exhibit or item to the court other than as provided in USCIT R. 73.1 (for USCIT R. 73.1, CBP transmits entries, protests, other documents and samples via CBP Form 322 which the Clerk's office posts as an attachment to the docket entry which notes that the entries have been received). The filing of Form 23 provides public notice through CM/ECF of the filing and service of a physical exhibit or item was made in connection with a specific docket entry. The submission of a physical exhibit or item should include the name of the party, a general description of the merchandise, and the docket entry to which it relates.

(As added Sept. 21, 2016, eff. Oct. 3, 2016.)

SPECIFIC INSTRUCTIONS – FORM 24

Form 24

Form 24 is intended to be used for certain statutory injunctions pursuant to 19 U.S.C. §1516a(c)(2) entered on consent of the parties. If any party opposes the injunction, then regular motion practice should be followed. The Order for Statutory Injunction upon Consent shall be substantially in the form set forth in Form 24.

(As added Sept. 19, 2017, eff. Oct. 23, 2017.)